

BCG0111 - CLINICAL TRIALS, EXPERIMENTAL PROCEDURES & ITEMS, AND INVESTIGATIONAL DEVICES



Benefit Type:	Medicare
Category:	Benefit Clarification Guideline
Effective Date:	1/1/2015
Last Updated:	5/6/2026
Prior Authorization:	Prior Authorization Rules May Apply
Plan Info:	SCAN Plan Documents
Network Coverage:	In Network; Out of Network

OVERVIEW

Clinical Trial (also called Clinical Research Study):

Clinical trials are one of the final stages of a lengthy and thorough research process to help patients enjoy longer, healthier lives. They help doctors and researchers find better ways to prevent, diagnose, or treat diseases. Clinical trials test new types of medical care, like how well a new cancer drug works. The trials help doctors and researchers see if the new care works and if it is safe. They may also be used to compare different treatments for the same condition to see which treatment is better, or to test new uses for treatments already in use.

Coverage with Evidence Development (CED):

A Medicare provision to cover items and services only when furnished in the context of approved clinical studies or with the collection of additional clinical data.

Food and Drug Administration (FDA) Investigational Device Exemption (IDE):

An investigational device exemption (IDE) allows the investigational device to be used in a clinical study in order to collect safety and effectiveness data. The FDA assigns a special identifier number that corresponds to each device granted an IDE. For purposes of assisting the Centers for Medicare & Medicaid Services (CMS) in determining Medicare coverage of items and services in IDE studies, the FDA will place all IDE devices in one of two categories:

- **Category A (Experimental) device**, which refers to a device for which “absolute risk” of the device type has not been established (that is, initial questions of safety and effectiveness have not been resolved) and the FDA is unsure whether the device type can be safe and effective; or
- **Category B (Non-experimental/investigational) device**, which refers to a device for which the incremental risk is the primary risk in question (that is, initial questions of safety and effectiveness of that device type have been resolved), or it is known that the device type can be safe and effective because, for example, other manufacturers have obtained FDA premarket approval or clearance for that device type.

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POLICY/POSITION STATEMENT

Experimental and investigational (E/I) procedures and items are generally not covered under Medicare.

E/I procedures are only covered by Medicare when the member is enrolled in a CMS-approved Clinical Trial, Coverage with Evidence Development (CED) Study, or Investigational Device Exemption (IDE) Study and Medicare coverage requirements are met.

The table below summarizes the review/authorization responsibility, cost-sharing, and provider payments for items and services furnished to a SCAN member who participates in a Medicare-covered clinical trial. Specific information on CMS-approved Clinical Trials, Coverage with Evidence Development (CED) Studies, and Investigational Device Exemption (IDE) Studies follows the summary table.

Category	Prior Authorization Required	Responsible for Review (Delegate or Plan)	Responsible Payor (Delegate, Plan, or Original Medicare)	Member Cost-Sharing	Letter
Experimental and/or Investigational (E/I) - not in CMS approved Trial or Study	Deny if requested – Not covered under Medicare	Refer to DOR [^]	N/A- Not Covered under Medicare	Member pays full cost if member proceeds – not covered	Coverage Decision/ Denial
Clinical Trial under Clinical Trials NCD 310.1	No	N/A	Original Medicare	Member pays SCAN plan cost-share. SCAN pays any difference between the Original Medicare cost-share and SCAN cost-share amount.	Informational (aka Carve-out)
Clinical Studies Approved under Coverage with Evidence Development (CED)	Yes	Refer to DOR [^]	Refer to DOFR*	Member pays SCAN plan cost-share.	Authorization/ Denial
Investigational Device Exemption (IDE) Studies	Yes	Refer to DOR [^]	Refer to DOFR*	Member pays SCAN plan cost-share.	Authorization/ Denial

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[^]Delineation of Responsibilities (DOR)

^{*}Division of Financial Responsibility (DOFR)

A. Clinical Trials Under National Coverage Determination (NCD) 310.1 – Routine Costs in Clinical Trials:

For clinical trials covered under [NCD 310.1 – Routine Costs in Clinical Trials](#) (Accessed 2/19/2025), Original Medicare covers the routine costs of qualifying trials for all enrollees, including those enrolled in Medicare Advantage plans, as well as reasonable and necessary items and services used to diagnose and treat complications arising from participating in qualifying clinical trials. All other Original Medicare rules apply.

- SCAN members are free to participate in any qualifying clinical trial that is open to beneficiaries in Original Medicare. SCAN may not require prior authorization for participation in any Medicare-qualified clinical trial. As noted in the SCAN Evidence of Coverage (EOC), members are requested, but not required, to notify the plan in advance when they choose to participate in Medicare-qualified clinical trials.
- Refer to [NCD 310.1 – Routine Costs in Clinical Trials](#) (Accessed 9/19/25) for more information on the definition of routine costs and the clinical trial Medicare qualification process.
- Payment of Routine Costs of Medicare-Approved Clinical Trials
 - Providers of clinical trial services submit claims for covered clinical trial services to the Medicare Administrative Contractor (MAC).
- When a member is enrolled in a clinical trial, SCAN is required to provide coverage for:
 - Services to diagnose conditions covered by clinical trial services
 - Most services furnished as follow-up care to clinical trial services and
 - Services already covered by the SCAN
 - Member Cost-Sharing
- The member will have coinsurance amounts for the routine services provided in accordance with Original Medicare payment rules. After Original Medicare has paid its share of the cost for the routine services, SCAN will pay the difference between the cost sharing in Original Medicare and the member's cost sharing as a member of SCAN. This means the member will pay the same amount for the services received as part of the study as he would if these services were received from SCAN. Example of how the cost sharing works:

The member has a lab test that costs \$100 as part of the research study. The share of the cost for this test is \$20 under Original Medicare, but the test would be \$10 under the member's SCAN benefit plan. In this case, Original Medicare would pay \$80 for the test and SCAN Health Plan Medical

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Policy BCG0111 Clinical Trials, Experimental Procedures and Items, and Investigational Devices Page 4 of 7 SCAN would pay \$10. This means the member would pay \$10, which is the amount to be paid under the member's benefit plan.

- In order for SCAN to pay its share of costs, the member (or providers acting on their behalf) must submit a request for payment and documentation such as a Medicare Summary Notice or a bill that shows the services received and the cost sharing incurred.
- The member's cost-sharing portion is included in the plan's out-of-pocket maximum calculation.

B. Coverage of items and services in Clinical Trials Approved Under Coverage with Evidence Development (CED):

SCAN, and SCAN's delegates, are responsible for items and services covered by Medicare in CMS-approved CED studies under "coverage with evidence development" (CED). Approved CED studies may also be referred to as "Registries" as the final study protocol must be registered with CMS prior to study initiation.

- Items and services in CMS-approved CED studies/registries require prior authorization by SCAN or the member's medical group and are subject to Utilization Management.
- Refer to the Division of Financial Responsibility (DOFR) to determine if SCAN or the member's medical group is responsible for payment of items and services in Medicare- approved CED studies or registries. If Medicare determines that the significant cost threshold is exceeded for that item or service ([see 42 CFR 422.109](#), payment reverts to original Medicare. (Accessed 9/19/25).
- Approved CED studies/registries are posted on the CMS [Coverage with Evidence Development](#) webpage. Billing instructions are issued for each NCD. (Accessed 9/19/25).
- For the most recent CED Guidance from CMS refer to: [Guidance for the Public, Industry, and CMS Staff: Coverage with Evidence Development](#) (Accessed 9/19/25).
- In circumstances of a new NCD with CED, significant cost requirements apply to all new NCDS requiring CED.

C. Coverage of items and services in Clinical Trials in FDA-Approved Investigational Device Exemption (IDE) Studies

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SCAN, and SCAN's delegates, are responsible for payment of claims related to member's participation in both Category A and Category B IDE studies, including CMS-approved B devices (not traditional/original Medicare).

Items and services in CMS FDA-approved IDE studies require prior authorization by SCAN or the member's medical group.

- Refer to the DOFR to determine if SCAN or the medical group is responsible for payment of claims related to members' participation in both Category A and B IDE studies that are covered by the MAC with jurisdiction over the SCAN plan's service area.
- Refer to the DOFR to determine if SCAN or the medical group is responsible for payment of routine care items and services in CMS-approved Category A and Category B IDE studies.
- Refer to the DOFR to determine if SCAN or the medical group is also responsible for CMS-approved Category B devices.
- CMS will not approve Category A devices because they are statutorily excluded from coverage.
- Note: CMS finalized changes to the IDE regulations (42 CFR § 405 Subpart B), effective January 1, 2015. CMS added criteria for coverage of IDE studies and changed from local Medicare Administrative Contractor (MAC) review and approval of IDE studies to a centralized review and approval of IDE studies. Click on this link to find additional information on [Medicare Coverage Related to Investigational Device Exemption \(IDE\) Studies](#) (Accessed 9/19/25).

Quick Links to CMS Clinical Trials Resources:

- [Medicare Approved Facilities/Trials/Registries](#) (Accessed 9/19/25) In recent years, Medicare has issued several National Coverage Determinations (NCDs) providing coverage for services and procedures of a complex nature, with the stipulation that the facilities providing these services meet certain criteria. This criterion usually requires, in part, that the facilities meet the minimum standards to ensure the safety of beneficiaries receiving these services in order to be considered as a provider with the ability and expertise to perform the procedure. Being certified as a Medicare approved facility is required for performing the following procedures: carotid artery stenting, VAD destination therapy, certain oncologic PET scans in Medicare-specified studies, and lung volume reduction surgery. Click on the applicable SCAN Health Plan Medical Policy BCG0111 Clinical Trials, Experimental Procedures and Items, and Investigational Devices Page 6 of 7 facility, procedure, trial or registry from the list on the left column of the webpage for additional information.

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- [Coverage with Evidence Development](#) (Accessed 9/19/2025) The NCDs requiring CED are listed on the left column of this webpage - clicking on an NCD will lead to a listing of approved clinical studies/ registries for that specific NCD.
- [Approved IDE Studies|CMS](#) (Accessed 2/19/2024) The IDE studies in this website have met CMS' standards for coverage. Studies with the Category A are approved for coverage of routine services only. Studies with the Category B are approved for coverage of the Category B device and related services, and routine services.

REGULATORY CITATIONS/REFERENCES

- [National Coverage Determination \(NCD\) 310.1 - Routine Costs in Clinical Trials](#) (Accessed 9/19/2025)
- [CMS.gov Glossary – Clinical Trials](#) (Accessed 9/19/2025)
- [FDA - Investigational Device Exemption \(IDE\)](#) (Accessed 9/19/2025)
- [Medicare Benefit Policy Manual Chapter 14 – Medical Devices. Section 10.](#) (Accessed 2/19/2025)
- [Medicare Claims Processing Manual Chapter 32 – Billing Requirements for Special Services, section 68 - Investigational Device Exemption \(IDE\) Studies; Section 69 - Qualifying Clinical Trials](#) (Accessed 9/19/2025)
- [Medicare Managed Care Manual Chapter 4 - Benefits and Beneficiary Protections Section 10.7 - Clinical Trials](#) (Accessed 9/19/2025)
- [Medicare Managed Care Manual Chapter 8 - Payments to Medicare Managed Care Organizations, Sections 30.4.3 and 40.4.4](#) (Accessed 9/19/2025)
- [SCAN Evidence of Coverage](#)

DISCLAIMERS

The information provided above is accurate as of the policy review date. However, CMS coverage policies are subject to periodic updates and revisions. As a result, this document may not reflect the most recent changes. For the latest information on applicable National Coverage Determinations (NCDs), Local Coverage Determinations (LCDs), Local Coverage Articles (LCAs), and CMS Online Manual System Transmittals, please visit the Medicare Coverage Database at: <https://www.cms.gov/medicare-coverage-database/search.aspx>.

This Policy is subject to the SCAN Medical Policy Terms of Use and Conditions, available at <https://medicalpolicy.scanhealthplan.com/terms-of-use>.

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POLICY GOVERNANCE

Developed by: SCAN Medical Policy

Responsible for Implementation (Lead Department): SCAN Utilization Management (UM), Embrace, Claims, Care Management, Care Coordination, and Medical Claims Review Departments

Maintained by: SCAN Medical Policy

Impacted Teams: UM, Embrace, Medical Claims Review, Claims, Grievance and Appeals Department (GAD), Network Management, Medical Policy, Compliance

POLICY HISTORY

Date:	Description:	Control #:
3/23/2015	Release of Document	N/A
10/01/2015	Update: Coding Section for ICD10 Code	N/A
02/09/2016	Update: Reference Section	N/A
11/22/2016	Update: Add CED to title; updated CED paragraph in Policy/Position Statement section	N/A
10/08/2018	Update: Reference Section	N/A
12/31/2018	Deleted the following sections: DOFR, Benefit Category, Non-Clinical Statement, Background and Rationale. Updated the following sections: Policy/Position Statement and References	N/A
12/23/2019	Update: Reference section. Deleted Background, Rationale and Coding sections	N/A
12/22/2020	Updated the following sections: Policy/Position Statement sections B and C, Quick Links to Clinical Trials Resources and References	N/A
02/23/2021	Policy/Position Statement: Formatting updates	N/A
12/22/2021	Update: Definitions: deleted definition of Devices (Medical) and replaced with definition of FDA-approved IDE. Policy/Position Statement: Revised first paragraph and added table; revised language in Sections A & B	N/A
11/29/2022	Update: Revised table to include appropriate letter for determination	N/A

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11/28/2023	Update: Revised language in Policy/Position Statement and table to clarify guidance for CED and IDE	N/A
2/13/2024	Update: Added link in table and reference section and language in Policy/Position Statement in compliance with CMS 2024 Final Rule regarding Clinical Trials, CED, and IDE. Updated template for Benefit Clarification Guidance.	N/A
2/19/2025	Update: Formatting updates and revisions to reference links. Confirmed accurate content.	N/A
03/27/2025	UMC Approval	1-0111-03272025F
9/25/2025	Update: Added "Responsible for Review" column and updated formatting of table, and revised Policy/Position statement for greater specificity.	2-0111-03272025F
5/4/2026	Update template formatting	3-0111-05042026D

RELATED POLICIES

CRP0410 – Category III Experimental & Investigational Devices

RETIRED/SUPERSEDED POLICIES

N/A